

**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/02/05/2023.

Date: 22nd May 2023.

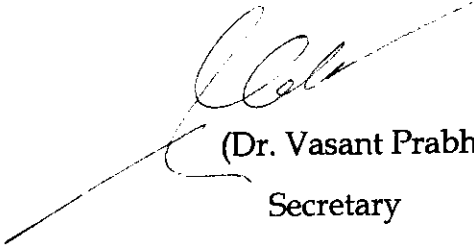
To,
The Collector, Thane
Collector Office, Court Naka,
Thane (West), Maharashtra 400601

Sub: Execution of the warrant under Section 40(1) of RERA in Complaint
No. CC006000000171766 filed by **Kunal Anand Date Vs. Nirmal
Developer in Project No. P51800011870.**

Sir,

I am forwarding the recovery warrant under Section 40 (1) of RERA & for its execution. You are requested to look into the matter personally and get the warrant executed at the earliest. On realization of the amount, you are requested to inform us.

Yours faithfully,


(Dr. Vasant Prabhu)

Secretary

MahaRERA, Mumbai.

Encl.: Warrant with
necessary papers.




Adv. Priti Tare
Advocate For Complaint
9819331688
6/6/23

Details of the attachable assets to be required u/s 17/2 of Maharashtra Realization of Land Revenue Rules 1967. When the Revenue Recovery Certificate is under the provision of Revenue Recovery Act 1890.

No. MahaRERA/VH/WARRANT/02/05/2023.

Date: 22nd May 2023.

1.	Name and address of the firm: -	Kunal Anand Date Flat No 106, Phase 2, Sumangal Co-Op Housing Soc., Neelam Nagar, Muund (East), Gavanpada Road, opp. Jain Temple, Mumbai Suburban - 400081. Mobile No.- +91- 9834077073 Email ID: - info@sanjaychaturvedi.net
2.	The sum to be recovered.	Refund of the amount paid by the complainant along with interest and further applicable interest till full refund of the amount to the complainant.
3.	The provision of law under which the R.R.C. is sent to recover the sum as in arrears of Land Revenue.	Recovery warrant u/s 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeals, etc.) Rules, 2017.



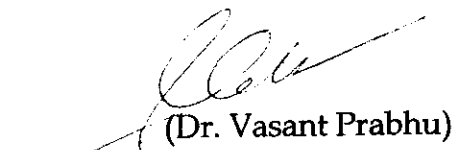
4.	No. & Date of order under which amount is ordered to be recovered.	Complaint No.: CC006000000171766 Final Order dated: 2 nd September 2020
5.	Full name and address of the defaulter with name of the building, room no., road name, village name/town, taluka, Dist. Pin Code No.	Nirmal Developer 0, Jawahar Talkies Compound, Dr. R P Road, Mulund West, Mumbai Suburban - 400080. Dharmesh Jain - Authorised Signatory 0, Nirmal House, Nirmal Nagar, Mulund Goregaon Link Road, Behind D Mart, Mulund West, Mumbai Suburban - 400080. Details of Contact Person: Shailendra Minocha - HOD Mobile No.- +91- 9004465472 Email ID: - ndmulund@nirmallifestyle.com
6.	Full details of the property of defaulter against which the process may be executed.	The Project known as "OLYMPIA A B" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. CTS NO 4/2 at Mulund, Mumbai - 400080. a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800011870.



		b) Other apartments which are still not booked. Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.
7.	Immovable property: a) Name of the building House/Building. b) Room No. c) Name of the village/town d) Road name/gally name e) Sr. No./ II No. of the property f) Area of the property in square meters g) CTS No. of the property area of the property.	c) If by attaching the property mentioned in 6 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

Mumbai

Date: 22nd May 2023


(Dr. Vasant Prabhu)
Secretary

MahaRERA, Mumbai



**MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY,
MUMBAI.**

No. MahaRERA/VH/WARRANT/02/05/2023.

Date: 22nd May 2023.

Recovery Warrant U/s. 40(1) of Real Estate

(Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

Complaint No.: CC006000000171766

Project No: P51800011870

Kunal Anand Date

--- Complainants.

Versus

Nirmal Developer

--- Respondents.

To,

The Collector, Thane

Collector Office, Court Naka,

Thane (West), Maharashtra 400601

Whereas the above-named complainant has filed the above complaint No. CC006000000171766, and the Authority/Adjudicating Officer passed the enclosed order directing the respondent to refund the amount the complainant is entitled to along with the applicable interest and the cost of the complaint.

And whereas the respondent has failed to comply with the order.

And whereas the amount ordered is recoverable from the respondents as



an arrears of land revenue by virtue of Section 40(1) of Real Estate (Regulation and Development) Act, 2016 and Rule 3 of Maharashtra Real Estate (Regulation and Development) (Recovery of Interest, Penalty, Compensation, Fine payable, Forms of Complaints and Appeal, etc.) Rules, 2017.

You are hereby directed to recover the ordered amount from the respondent as the arrears of land revenue and pay it to the complainant and report the compliance.

The necessary information is:

1) Name of complainant with his address:

Kunal Anand Date

Flat No 106, Phase 2, Sumangal Co-Op Housing Soc., Neelam Nagar, Muund (East), Gavanpada Road, opp. Jain Temple, Mumbai Suburban - 400081.

Mobile No.- +91- 9834077073

Email ID: - info@sanjaychaturvedi.net

2) Name of respondents/promoters/directors/partners

Nirmal Developer

0, Jawahar Talkies Compound, Dr. R P Road, Mulund West, Mumbai Suburban - 400080.

Dharmesh Jain - Authorised Signatory

0, Nirmal House, Nirmal Nagar, Mulund Goregaon Link Road, Behind D Mart, Mulund West, Mumbai Suburban - 400080.

Details of Contact Person: Shailendra Minocha - HOD

Mobile No.- +91- 9004465472

Email ID: - ndmulund@nirmallifestyle.com



3. **Name of the project & its location:**

The Project known as "OLYMPIA A B" situated at Plot Bearing No / CTS no / Survey Number/Final Plot no. CTS NO 4/2 at Mulund, Mumbai - 400080.

a) Housing project which is duly registered under the RERA Act bearing Registration No. P51800011870.

b) Other apartments which are still not booked.

Note: Land on which the project is being implemented, apartments that are already booked with other allottees should not be attached so that the project can be completed.

4) **Particulars of immovable property and any other movable and immovable property:**

a) If by attaching the property mentioned in 3 above still arrears remain, then the properties/offices or any other movable or immovable properties of the defaulters be attached and auctioned. In order to ascertain unsold inventory and other properties of defaulters, you may adopt the procedure similar to which laid down under Order 21 Rule 41 CPC - namely to examine the judgement debtor to disclose his property and produce its property card, failing which he can be sent to jail for 3 months.

5) **Amount to be refunded:**

Refund of the amount paid by the complainant along with interest and further applicable interest till full refund of the amount to the



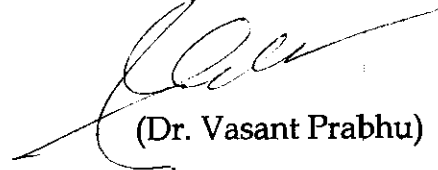
complainant.

6) Enclosures:

- i) Final order dated. 2nd September 2020.
- ii) Order of Non-compliance dated 12th November 2021.
- iii) Calculation submitted by the complainant.

Mumbai

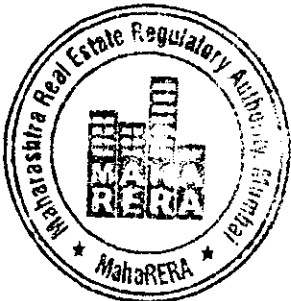
Date: 22nd May 2023



(Dr. Vasant Prabhu)

Secretary

MahaRERA, Mumbai



**BEFORE THE MAHARASHTRA REAL ESTATE REGULATORY
AUTHORITY, MUMBAI
NON-COMPLIANCE APPLICATION**

In

1. COMPLAINT NO: CC006000000044391

Nandkishor Mane Complainant

Versus

Nirmal Developers Respondent

Along With

2. COMPLAINT NO: CC006000000079133

Rekha Mishra Complainant

Versus

Nirmal Developers Respondent

Along With

3. COMPLAINT NO: CC0060000000161232

Anil Somaiya Complainant

Versus

Nirmal Developers Respondent

Along With

4. COMPLAINT NO: CC0060000000171766

Kunal Date Complainant

Versus

Nirmal Developers Respondent

Along With

5. COMPLAINT NO: CC0060000000192122

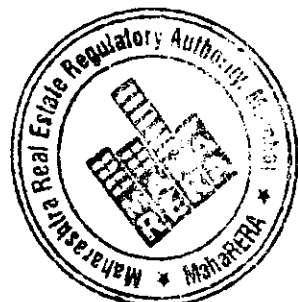
Aniket Metkar Complainant

Versus

Nirmal Developers Respondent

Along With

6. COMPLAINT NO: CC0060000000192711



Jayprakash Singh

.... Complainant

Versus

Nirmal Developers

.... Respondent

Along With

7. COMPLAINT NO: CC006000000193005

Nilaja Achrekar

.... Complainant

Versus

Nirmal Developers

.... Respondent

Along With

8. COMPLAINT NO: CC006000000193007

Ankit Chande

.... Complainant

Versus

Nirmal Developers

.... Respondent

MahaRERA Registration No. P51800011870

Coram: Dr. Vasant Prabhu, Secretary, MahaRERA

Complainants appeared in person at Sr. Nos. 1 & 5.

Adv. Sunil Bhatla appeared for the complainant at Sr. No. 2.

CA Ami Chheda appeared for the complainant at Sr. No. 3.

Adv. Pooja Gaikwad appeared for the complainants at Sr. Nos. 4, 6, 7 & 8.

Adv. Tushar Kadam appeared for the respondent.

Order

12th November 2021

(Through Video Conferencing)

1. The Complainants have filed these present applications for non-compliance of the MahaRERA Orders passed on various dates in the Complaint nos. as mentioned above, (hereinafter referred to as the said complaints) by the Respondent.

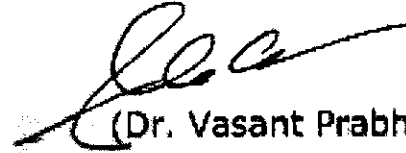


2. In the said complaints filed by the complainants, the respondent was directed to refund the amount paid by the respective complainants along with simple interest till full refund of the amounts.
3. On the said non-compliance applications, the hearing was held today through video conferencing as per MahaRERA Circular no. 27/2020 and MahaRERA Order No. 15/2020.
4. During the hearing, the complainants submitted that, the orders were passed by the MahaRERA for refund of the amounts paid by them along with the applicable interest, however, the respondent has, till date failed comply with the orders issued by the MahaRERA and has not yet refunded their amounts along with the interest. The complainants therefore sought action against the respondent under section 40(1) of RERA.
5. Even though the respondent appeared for the hearing, it has not objected to the issuance of the recovery warrants.
6. From the above, it is clear that, the respondent has failed to refund the amounts of the complainants along with the applicable interest till date. Hence the complainants are entitled to seek issuance of warrants against the respondent.
7. Therefore, as per the request of the complainants, the MahaRERA has no alternative but to proceed with action under section 40 (1) of RERA against the respondent. It is therefore directed to issue individual recovery warrants under section 40(1) of RERA read



along with rule 3 of the Maharashtra Real Estate (Regulation & development) (Recovery of Interest, Penalty, Compensation, Fine Payable, Forms of Complaint & Appeals etc.) rules, 2017, against the unsold inventory in the said project.

8. In view of the above, the applications of non-compliance stand disposed of.



(Dr. Vasant Prabhu)

Secretary, MahaRERA



**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

COMPLAINT NO: CC006000000089971.

Mr. Prasanna Iyengar.

... Complainant.

COMPLAINT NO: CC0060000000171766.

Mr. Kunal Anand Date.

... Complainant.

Versus

M/s. Nirmal Developers.

... Respondents.

MahaRERA Regn: P51800011870.

(Olympia)

Coram: Shri B.D. Kapadnis,
Member-II.

Appearance:

Complainant: Adv. Ms. Pooja Gaikwad.

Respondents: Adv. Mr. Tushar Kadam a/w
Ms. Vaishali Mohite.

FINAL ORDER

02nd September, 2020

The complainants contend that they booked flats in the respondents' registered project Olympia at Kapal Nagari, Mulund (W). The respondents could not complete the flats in time as promised and therefore, at the instance of complainants the respondents have cancelled the booking of the complainants' flats and promised to return the amount paid by the complainants with interest. They have refunded part of the amount as shown in the table and the balance is still unpaid. Therefore, the complainants have been seeking refund of their amount with interest. The necessary information is as follows.



Complaint No.	Flat No	Amount paid	Date of cancellation	Promised refund amount	Refunded amount	Balance due
CC006/ 89971 Prassanna Iyengar	B- 504	Rs. 19,47,555/-	19.07.2017	Rs. 24,69,048/-	Rs. 5,00,000/-	Rs. 19,69,048/-
CC006/ 171766 Kunal Date	A- 405	Rs. 36,01,599/-	21.04.2017 Cancellation Deed dated- 08.05.2017	Rs. 36,01,599/-	Rs. 12,00,000/-	Rs. 24,01,599/-

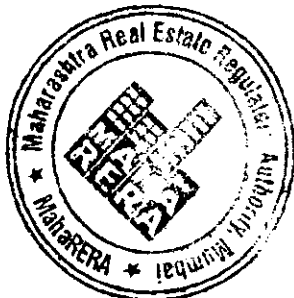
2. Heard Adv. Shri. Tushar Kadam for the respondents and Adv. Ms. Pooja Gaikwad for the complainants. The respondents have not filed any reply in these complaints.

3. After giving thought to the facts as disclosed, I find that the respondents have failed to return the balance amount despite their promise and therefore, the complainants are entitled to get the amount which is due from the respondents with interest at prescribed rate. The prescribed rate of Interest is 2% above SBI's highest MCLR which is currently at 7% p.a. The complainants are also entitled to get Rs. 20,000/- towards the cost of their complaints. Therefore, the following are the orders.

ORDER

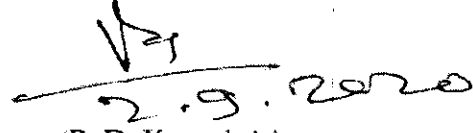
- The respondents shall refund the amount paid by the complainants with interest at the rate of 9% from receipts of those payments till they are refunded.
- The respondents are entitled to get set-off of the amount which is already refunded as shown in the table.

[Handwritten signature]



- C. The respondents shall pay Rs. 20,000/- to the complainants towards the cost of their complaints
- D. Payments shall be subject to moratorium period specified by the Authority from time to time.
- E. Charge of the aforesaid amounts shall be on the booked flats of the complainants respectively till satisfaction of their claims.

Date: 02.09.2020.



(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.

